



CHAPTER 43

An Act to provide for the simultaneous holding of elections of rural district councillors and parish councillors ; to require the expenses incurred in relation to the holding of elections of parish councillors to be paid by the council of the rural district within which the parish is situate ; to provide for excluding certain days in computing the period of time within which elections to fill casual vacancies occurring in the offices of county, borough and district councillor and elective auditor are required to be held; and for purposes connected with the matters aforesaid.

[5th July, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) After the year nineteen hundred and fifty-seven, in each of the cases mentioned, with respect to rural parishes, in the first column of the First Schedule to this Act, the elections of rural district and parish councillors mentioned, in relation to that case, in the second and third columns of that Schedule, shall be held in the same year and on the same day, and the councillors whose places are filled by the newly elected councillors shall accordingly retire simultaneously.

Synchroniza-
tion of rural
district and
parish
elections.

(2) In each of the said cases, the polls at the elections which, by virtue of the foregoing subsection, are required to be held simultaneously shall be taken together, and paragraph (c) of subsection (1) of section twenty-nine of the Act of 1949 (which

requires provision to be made by district and parish election rules for the taking together, so far as practicable, of the polls at certain elections of rural district and parish councillors) shall cease to have effect at the end of the said year.

(3) Nothing in this section shall be construed as affecting, in relation to a group of parishes, the requirement imposed by sub-section (2) of section fifty of the Act of 1933 that parish councillors shall retire together.

Provisions
consequential
on section one
of this Act.

2.—(1) As from the first day of June, nineteen hundred and fifty-seven,—

- (a) the Act of 1933, the Act of 1948 and the Act of 1949 shall have effect subject to the amendments specified in Part I of the Second Schedule to this Act, being amendments consequential on the foregoing section; and
- (b) the provisions of Part II of that Schedule shall have effect for the purpose of, and in connection with, the securing of compliance with the requirements of that section.

(2) Where the regular retirement of all the rural district councillors elected for a parish, for the several wards of a parish or for a combination of parishes would, apart from this Act, take place in the year nineteen hundred and fifty-nine or the year nineteen hundred and sixty, then, unless the term of office of those councillors is varied by an order under Part II of the Second Schedule to this Act, the parish councillors who are required by this Act to retire simultaneously with the first-mentioned councillors shall, instead of retiring in the year nineteen hundred and fifty-eight, continue in office until the twentieth day of May in the year nineteen hundred and fifty-nine or the year nineteen hundred and sixty, as the case may be, or, if that day is a bank holiday or day appointed for public thanksgiving or mourning, the first day thereafter which is not a Sunday, bank holiday or day so appointed.

Wards for
rural district
elections.

3. A rural parish divided into parish wards shall not, for the purpose of the first ordinary election held after the year nineteen hundred and fifty-seven of councillors for the rural district within which the parish is situate or any subsequent election of such councillors, be divided into wards any one of which is not co-extensive with a parish ward or a combination of parish wards.

Payment of
expenses of
elections of
district
and parish
councillors.

4.—(1) The council of an urban district shall pay all expenses properly incurred in relation to the holding of an election of urban district councillors for the district, not exceeding such scale as may be fixed by the county council, so far as the scale is applicable.

(2) The council of a rural district shall pay—

(a) all expenses properly incurred in relation to the holding of an election of rural district councillors for the district, not exceeding such scale as may be fixed by the county council, so far as the scale is applicable; and

(b) all expenses properly incurred in relation to the holding of—

(i) an election of parish councillors for a parish within the district which has a separate parish council; and

(ii) an election, for a parish within the district which is grouped under a common parish council with a neighbouring parish or parishes (whether within or outside the district), of the separate representatives on that council for the first-mentioned parish,

not exceeding in either case such scale as may be fixed by the county council, so far as the scale is applicable;

and all such expenses as are mentioned in paragraph (b) of this subsection shall be defrayed as special expenses separately chargeable on the parish in question.

(3) Where the poll at an election of rural district councillors is taken together with the poll at an election of parish councillors, one half of the cost of taking the combined polls shall be treated as attributable to the holding of each election.

(4) The foregoing provisions of this section shall have effect in lieu of subsection (4) of section twenty-nine of the Act of 1949 as respects every election of urban district councillors, rural district councillors or parish councillors, being an election the day of which falls on or after the first day of November, nineteen hundred and fifty-six.

5.—(1) For sub-paragraph (5) of paragraph 5 of Part VI of the Third Schedule to the Act of 1933 (which relates to the taking of a poll consequent on a parish meeting) there shall be substituted the following sub-paragraph:—

“(5) A poll consequent on a parish meeting shall be taken by ballot in accordance with rules made by the Secretary of State, and the provisions of the local elections rules in the Second Schedule to the Representation of the People Act, 1949, and of the enactments mentioned in subsection (1) of section one hundred and sixty-five of that Act shall, subject to any adaptations, alterations or exceptions made by the first-mentioned rules, apply in the case of a poll so taken as if it were a poll for the election of parish councillors.

Rules made under this sub-paragraph shall be laid before each House of Parliament as soon as may be after they are made.”

(2) Sub-paragraph (3) of paragraph 5 of the Eighth Schedule to the Act of 1949 (which amends the said sub-paragraph (5) as originally enacted) shall cease to have effect.

Computation
of time for
purposes of
elections to
fill casual
vacancies in
certain local
government
offices.

6.—(1) In computing the period of thirty days within which—

- (a) an election to fill a casual vacancy occurring in the office of county councillor, councillor of a borough or district councillor outside the administrative county of London is required by subsection (1) of section sixty-seven of the Act of 1933 to be held;
- (b) an election to fill a casual vacancy occurring in the office of London county councillor or metropolitan borough councillor is required by subsection (1) of section forty-two of the London Government Act, 1939, to be held; or
- (c) an election to fill a casual vacancy occurring in the office of elective auditor is required by virtue of subsection (4) of section two hundred and thirty-eight of the Act of 1933 to be held;

a Sunday, Christmas Day, Good Friday, bank holiday or day appointed for public thanksgiving or mourning and the Saturday before and the Tuesday after Easter Day or Whit Sunday shall be disregarded.

(2) This section shall come into operation on the first day of November, nineteen hundred and fifty-six:

Provided that this section shall not apply to any such period as is mentioned in the foregoing subsection which has begun before that day.

Savings.

7.—(1) Any scale of expenses fixed, or having effect as if fixed, under subsection (4) of section twenty-nine of the Act of 1949, being a scale in force immediately before the first day of November, nineteen hundred and fifty-six, shall continue in force and have effect as if fixed under section four of this Act.

(2) Any rules having effect by virtue of sub-paragraph (5) of paragraph 5 of Part VI of the Third Schedule to the Act of 1933, being rules in force immediately before the passing of this Act, shall continue in force and have effect as if made under the sub-paragraph substituted for the said sub-paragraph (5) by subsection (1) of section five of this Act.

(3) Any order or direction made or given, or having effect as if made or given, under any provision of section thirty-five of the Act of 1933, being an order or direction in force immediately before the first day of June, nineteen hundred and fifty-seven, shall, so far as it could have been made or given under any provision of the sections substituted for the said section thirty-five by paragraph 1 of the Second Schedule to this Act, continue in force and have effect as if made or given under that provision.

8.—(1) This Act may be cited as the Local Government Elections Act, 1956. Short title,
interpretation
and extent.

(2) In this Act—

(a) the expressions “ the Act of 1933 ”, “ the Act of 1948 ” and “ the Act of 1949 ” mean, respectively, the Local Government Act, 1933, the Representation of the People Act, 1948, and the Representation of the People Act, 1949;

(b) references to the Act of 1933 shall be construed as references to that Act as amended by any subsequent enactment (including, except where the context otherwise requires, this Act).

(3) This Act shall not extend to Scotland or Northern Ireland.

Section 1.

SCHEDULES

FIRST SCHEDULE

COMBINED ELECTIONS

Case	Elections to be combined	
	Rural district elections	Parish elections
1. Where a rural parish having a separate parish council is neither divided into wards for the purpose of the election of rural district councillors nor combined with one or more other parishes for that purpose.	Ordinary elections of rural district councillors for the parish.	If the parish is not divided into parish wards, ordinary elections of parish councillors for the parish. If the parish is divided into parish wards, ordinary elections of parish councillors for all the wards.
2. Where a rural parish having a separate parish council is divided into wards for the purpose of the election of rural district councillors.	Ordinary elections of rural district councillors for all the wards.	If the parish is not divided into parish wards, ordinary elections of parish councillors for the parish. If the parish is divided into parish wards, ordinary elections of parish councillors for all the wards.
3. Where a rural parish having a separate parish council is combined with one or more other parishes for the purpose of the election of rural district councillors.	Ordinary elections of rural district councillors for the combined parishes.	If the parish is not divided into parish wards, ordinary elections of parish councillors for the parish. If the parish is divided into parish wards, ordinary elections of parish councillors for all the wards.
4. Where a rural parish is grouped under a common parish council with a neighbouring parish or parishes (whether the grouped parishes are within the same rural district or not) and is neither divided into wards for the purpose of the election of rural district councillors nor combined with one or more other parishes for that purpose.	Ordinary elections of rural district councillors for the parish.	If the parish is not divided into parish wards, ordinary elections of the separate representatives for the parish on the common parish council. If the parish is divided into parish wards, ordinary elections of such representatives as aforesaid for all the wards.

Case	Elections to be combined	
	Rural district elections	Parish elections
5. Where a rural parish is both grouped under a common parish council with a neighbouring parish or parishes (whether the grouped parishes are within the same rural district or not) and divided into wards for the purpose of the election of rural district councillors.	Ordinary elections of rural district councillors for all the wards.	If the parish is not divided into parish wards, ordinary elections of the separate representatives for the parish on the common parish council. If the parish is divided into parish wards, ordinary elections of such representatives as aforesaid for all the wards.
6. Where a rural parish is both grouped under a common parish council with a neighbouring parish or parishes (whether the grouped parishes are within the same rural district or not) and combined with one or more other parishes for the purpose of the election of rural district councillors.	Ordinary elections of rural district councillors for the combined parishes.	If the parish is not divided into parish wards, ordinary elections of the separate representatives for the parish on the common parish council. If the parish is divided into parish wards, ordinary elections of such representatives as aforesaid for all the wards.

SECOND SCHEDULE

Sections 2, 7.

CONSEQUENTIAL AMENDMENTS OF ENACTMENTS AND PROVISIONS
FOR SECURING SIMULTANEOUS RETIREMENT OF COUNCILLORS

PART I

CONSEQUENTIAL AMENDMENTS OF ENACTMENTS

1. For section thirty-five of the Act of 1933 (which provides for the term of office and system of retirement of urban and rural district councillors) there shall be substituted the following sections:—

“ 35.—(1) The councillors of an urban district shall be called ‘urban district councillors’.

(2) The councillors for each urban district shall be elected by the local government electors for the district in manner provided by this Act and Part I of the Representation of the People Act, 1949.

(3) The term of office of urban district councillors shall be three years, and one-third, as near as may be, of the whole number of councillors for an urban district or, in the case of an urban

2ND SCH.
—cont.

district divided into wards, for each ward, being those who have been district councillors for the longest time without re-election, shall retire in every year on the twentieth day of May:

Provided that, where a county council, on request made by a resolution of an urban district council, passed by not less than two-thirds of the members voting on the resolution, consider that it would be expedient to provide for the simultaneous retirement of all the councillors for that district, they may by order give directions to that effect, and where an order giving such directions as aforesaid has been made (whether before or after the commencement of this Act), the councillors for that district shall retire together in every third year on the twentieth day of May.

(4) Where any such order has been made with respect to the simultaneous retirement of urban district councillors, the county council may, on the like request, by order rescind the first-mentioned order, and the rescinding order shall provide for all matters necessary or proper for giving effect thereto and, in particular, shall require all the councillors for the district in office at the date thereof to retire on the twentieth day of May next following that date.

(5) The places of urban district councillors who are required by or by virtue of this section to retire on the twentieth day of May in any year shall be filled by the newly elected councillors who shall come into office on that day.

35A.—(1) The councillors of a rural district shall be called ‘rural district councillors’.

(2) The councillors for each rural district shall be elected by the local government electors for the district in manner provided by this Act and Part I of the Representation of the People Act, 1949.

(3) The term of office of rural district councillors shall be three years, and the following provisions shall have effect with respect to their retirement, that is to say:—

(a) in the case of a rural district other than one falling within paragraph (b) or (c) of this subsection, one-third, as near as may be having regard to the provisions of section one of the Local Government Elections Act, 1956, of the whole number of councillors for the district shall retire in every year on the twentieth day of May;

(b) in the case of a rural district comprising only two rural parishes which are not grouped together under a common parish council but either or both of which has a separate parish council or is grouped under a common parish council with a neighbouring parish or parishes in another rural district, the district councillors representing one of the parishes shall retire together in one year of each triennial period on the twentieth day of May and those representing the other parish shall retire together in another year of that period on the twentieth day of May;

- (c) in the case of a rural district co-extensive with a rural parish which has a separate parish council or is grouped under a common parish council with a neighbouring parish or parishes in another rural district, or of a rural district comprising only two rural parishes grouped together under a common parish council (whether or not they are so grouped with a neighbouring parish or parishes in another rural district), the district councillors representing that parish or, as the case may be, those parishes shall retire together in every third year on the twentieth day of May:

Provided that, in the case of a rural district the councillors whereof do not regularly retire simultaneously, the county council, if they consider, on request made by a resolution of the rural district council passed by not less than two-thirds of the members voting on the resolution, that it would be expedient to provide for the simultaneous retirement of all the councillors for the district, may by order give directions to that effect, and where an order giving such directions as aforesaid has been made (whether before or after the commencement of this Act), the councillors for that district shall retire together in every third year on the twentieth day of May.

(4) Where any such order has been made with respect to the simultaneous retirement of rural district councillors, the county council may, on the like request, by order rescind the first-mentioned order, and the rescinding order shall provide for all matters necessary or proper for giving effect thereto.

(5) The places of rural district councillors who are required by or by virtue of this section to retire on the twentieth day of May in any year shall be filled by the newly elected councillors who shall come into office on that day.

(6) A county council may, for the purpose of regulating the retirement of rural district councillors in cases where they do not regularly retire simultaneously, direct in which year or years of each triennial period the councillors for each electoral area in the district shall retire:

Provided that—

- (a) no direction shall be given under this subsection which has the effect of specifying different years of retirement for councillors who are required by section one of the Local Government Elections Act, 1956, to retire simultaneously; and
- (b) in exercising their powers under this subsection, the county council shall so far as practicable secure that the councillors who have been district councillors for the longest time without re-election shall retire before the other councillors for the district ”.

2. In subsection (2) of section fifty of the Act of 1933, for the words “ on the fifteenth day of April in the year nineteen hundred and thirty-seven, and on the twentieth day of May in every third year thereafter ”, there shall be substituted the words “ on the twentieth day of May in every third year ”.

2ND SCH.
—cont.

3. In section sixty-seven of the Act of 1933, subsections (4) and (5) shall each have effect as if for the words "retire by thirds" there were substituted the words "do not regularly retire simultaneously".

4. In accordance with paragraphs 1 and 2 of this Schedule—

(a) in paragraph 3 of the Sixth Schedule to the Act of 1948, the words "sections thirty-five and fifty of, and" and the words "the day of retirement of district and parish councillors and"; and

(b) in the Table set out in sub-paragraph (1) of paragraph 5 of the Eighth Schedule to the Act of 1949, the words "Subsection (2) of section thirty-five";

shall cease to have effect.

PART II

PROVISIONS FOR SECURING SIMULTANEOUS RETIREMENT OF COUNCILLORS

5. In addition to the powers conferred on them by the Act of 1933, a county council shall, for the purpose of securing compliance, as respects rural districts and rural parishes within the county, with the requirements of section one of this Act and the requirements of the Act of 1933 with respect to the retirement of councillors, have power by order—

(a) to direct that any rural district councillors who would, apart from the direction, regularly retire in a particular year shall retire instead in such earlier or later year as may be specified in the order on the twentieth day of May or, if that day is a Sunday, bank holiday or day appointed for public thanksgiving or mourning, the first day thereafter which is none of them; and

(b) to effect any necessary extension or reduction of the term of office of any parish councillors who are required to retire simultaneously with any rural district councillors:

Provided that the power conferred by this paragraph—

(i) shall not be so exercised as to postpone the ordinary day of retirement of a councillor from the year in which, apart from the direction, he would regularly retire to a year other than the next or the next but one; and

(ii) shall not be so exercised as to effect a reduction in the term of office of a councillor unless the county council are satisfied that it is not reasonably practicable to attain the object of the order by extending his term of office.

6. Where an order under the last foregoing paragraph directs that a rural district councillor shall retire in a year later than that in which, apart from the direction, he would have regularly retired and, on the date of the making of the order, there exists in the office of that councillor a casual vacancy to which subsection (3) of section sixty-seven of the Act of 1933 applies, an election to fill the vacancy shall be held under that section as if the vacancy had occurred on that date; and where an order under that paragraph directs that a rural district

councillor shall retire in a year earlier than that in which, apart from the direction, he would have regularly retired and, on the date of the making of the order, there exists in the office of that councillor a casual vacancy to which, by virtue of the order, that subsection becomes applicable, then if, before the date of the making of the order, the day of election to fill that vacancy has been fixed under that section, the election shall be held as if the order had not been made.

2ND SCH.
—cont.

7. Section forty-one of the Act of 1933 (which contains special provisions with respect to the exercise, in relation to a rural district not wholly situate in one county, of the power conferred on county councils by Part I of that Act of regulating the retirement of rural district councillors and of fixing or altering the number of rural district councillors) shall have effect as if the reference to that power included a reference to the power conferred on county councils by this Part of this Schedule.

8. During his term of office the chairman or vice-chairman of a rural district council or parish council whose retirement as a councillor falls to be determined by virtue of the provisions of this Act or an order thereunder shall, notwithstanding those provisions, continue to be a member of the council.

9. A copy of every order made under this Part of this Schedule shall be sent to the Secretary of State and to the Minister of Housing and Local Government.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Representation of the People Act, 1948 ...	11 & 12 Geo. 6. c. 65.
Representation of the People Act, 1949 ...	12, 13 & 14 Geo. 6. c. 68.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament